

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 11-cv-00303-RBJ-MEH

ST. PAUL SOBER LIVING, LLC,
CHRIS EDRINGTON,
DONALD EDRINGTON,
ADAM TIPTON, and
ALEX COLINS,

Plaintiffs,

v.

BOARD OF COUNTY COMMISSIONERS, GARFIELD COUNTY,

Defendant.

VERDICT

We the jury unanimously provide our answers to the following questions:

1. Have the Plaintiffs proven by a preponderance of the evidence that the handicap of the residents of the sober house in Elk Springs, Garfield County, Colorado was a motivating factor for the Board of County Commissioners' application of the zoning code?

No _____ Yes X

2. Have Plaintiffs St. Paul Sober Living, LLC, Chris Edrington and/or Donald Edrington proven their retaliation claim by a preponderance of the evidence?

a. St. Paul Sober Living, LLC No _____ Yes X

b. Chris Edrington No X Yes _____

c. Donald Edrington No X Yes _____

If you answered question number 1 "no" and question number 2 "no" as to each listed Plaintiff, please sign the verdict without answering questions 3 or 4. If you answered question number 1 "yes", which means that you found that defendant did discriminate against plaintiffs in violation of the Fair Housing Act, and/or question number 2 "yes" as to any listed Plaintiff, which means that you did find retaliation, please proceed to answer questions 3 and 4.

3. Did defendant's discriminatory conduct proximately cause money damages to:

- a. St. Paul Sober Living, LLC No Yes X
- b. Chris Edrington No X Yes
- c. Donald Edrington No X Yes
- d. Adam Tipton No X Yes
- e. Alex Colins No X Yes

4. What amount of money damage, if any, was proximately caused by defendant's discrimination? If you answered "no" on question number 3, as to any one or more of the Plaintiffs, then as to that Plaintiff enter a nominal amount of one dollar (\$1.00).

- a. St. Paul Sober Living, LLC \$ 400,000
- b. Chris Edrington \$ 100
- c. Donald Edrington \$ 100
- d. Adam Tipton \$ 100
- e. Alex Colins \$ 100

Dated December 21, 2012

Tumors'
names
redacted